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Environmental Working Group: California Senate Committee Advances Landmark Bill to Protect Schoolkids From Harmful UPF

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WASHINGTON, July 3 -- The Environmental Working Group issued the following news release on July 2, 2025:

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California Senate committee advances landmark bill to protect schoolkids from harmful UPF

SACRAMENTO - Advancing commonsense policy to protect children's health, the California Senate Education Committee today passed a bipartisan bill that would phase out certain ultra-processed food, or UPF, from meals served in public schools.

UPF are industrially manufactured and chemically modified products. They're often made with potentially harmful additives to enhance taste, texture, appearance and durability.

Assembly Bill 1264, introduced by Assemblymember Jesse Gabriel (D-Encino), would create a first-in-the-nation legal definition of UPF.

The bill would also task Office of Environmental Health Hazard Assessment scientists to work with University of California experts to research UPF links to disease and health harms. These experts would then identify those that are "particularly harmful" and should be phased out of public school food.

Schools would be required to comply with the law starting in 2032.

"Our public schools should not be serving students ultra-processed food products filled with chemical additives that can harm their physical and mental health and interfere with their ability to learn," said Gabriel.

Some artificial food chemicals, commonly found in UPF, have been shown to affect the brain's influence on behavior and learning.

The bill has bipartisan support, including from Assembly Republican Leader James Gallagher (East Nicolaus) and Progressive Caucus Chair Alex Lee (D-San Jose).

"In California, Democrats and Republicans are joining forces to prioritize the health and safety of our children, and we are proud to be leading the nation with a bipartisan, science-based approach," said Gabriel.

"This new legislation will ensure that schools are serving our students the healthy, nutritious meals they need and deserve," he added.

The Environmental Working Group is cosponsoring AB 1264. The bill will next be heard by the Senate Environmental Quality Committee.

Health threats of UPF

Experts say UPF food and drinks beguile people into eating more of them than they really want. The products are engineered to evoke a desire to consume more, they say.

In addition, scientific research links UPF to serious health harms, including cancer, cardiovascular disease, Type 2 diabetes, metabolic disorders such as Crohn's disease and fatty liver disease, reproductive and neurobehavioral harms, and mental health issues.

Obesity is chief among the health problems linked to UPF. Rates of obesity

in the U.S. and globally have skyrocketed in tandem with rising UPF consumption.

"Ultra-processed foods aren't just unhealthy - they're engineered for overconsumption. Like addictive substances, they hijack the brain's reward system, making it difficult for people to cut back, even when facing serious health consequences," said Ashley Gearhardt, Ph.D., and professor of psychology at the University of Michigan.

"America's diet is now dominated by ultra-processed foods, many of which were shaped by the same corporate strategies that once hooked people on cigarettes. The result? Rising rates of obesity, diabetes and diet-related diseases, especially in children," added Gearhardt.

Food companies have consistently opposed efforts to regulate UPF. They market and sell these products to consumers, in California and nationwide, without disclosing their potential harms.

Landmark UPF legislation

If passed by the Legislature and signed into law, AB 1264 would establish a first-ever legal definition in the U.S. for UPF.

"Processed foods can have a place in a healthy diet, but Americans - especially children - are consuming too many ultra-processed foods, which is contributing to increased rates of cancer, heart disease and diabetes," said Bernadette Del Chiaro, EWG's senior vice president for California.

"AB 1264 takes an important step toward protecting student health by identifying and removing the most harmful ultra-processed foods from California schools," added Del Chiaro. "We commend Assemblymember Gabriel and all of the bill's co-authors for taking commonsense steps toward better protecting the well-being of California's children."

In developing a definition of "particularly harmful" UPF, the experts would consider whether:

* The product includes additives that are banned, restricted or subject to warnings in other jurisdictions.

* Based on scientific research, the product or its ingredients are linked to cancer, cardiovascular or metabolic disease, developmental or reproductive harms, obesity, Type 2 diabetes or other health harms.

* The product or its ingredients contribute to food addiction.

* The product is high in fat, sugar or salt.

California schools are projected to provide over 1 billion meals this school year. AB 1264 would help protect students from harmful, hyperpalatable chemicals and ensure that all children - from a diversity of economic backgrounds - have access to healthy and nutritious foods.

"Healthy school meals are the fastest, most powerful way to create a healthier future for our children and our nation," said Nora LaTorre, CEO of Eat Real, bill cosponsor and coalition partner of EWG.

California leads the way

California is changing the national conversation about food safety and school nutrition. With strong bipartisan

support, over the past two years the state has enacted two Gabriel-authored landmark food laws.

The California School Food Safety Act, signed into law in 2024, bans six harmful food dyes from being served in public schools.

It followed a 2023 state law banning the manufacture, distribution or sale of food containing the chemicals Red Dye No. 3, propyl paraben, brominated vegetable oil and potassium bromate.

California has long been a bellwether state for public health protections. Now similar actions are sweeping the country, with food chemical bills introduced, debated and in some cases enacted in states from Arizona to Vermont, including Illinois, New York and Pennsylvania.

Gov. Gavin Newsom issued an executive order in January directing California agencies to look for new ways to minimize the harms of UPF consumption and reduce the purchase of soda, candy and other types of UPF, including those that contain artificial dye.

"Poor nutrition in childhood, predominantly due to processed foods, which are high in added sugars and low in nutrient quality, is a major and modifiable factor contributing to life-long risk for chronic diseases, including obesity, Type 2 diabetes, fatty liver disease and heart disease and also affects learning and classroom performance," said Michael Goran, Ph.D., and program director for nutrition and obesity at Children's Hospital Los Angeles.

Goran is also professor and vice chair for research in the department of pediatrics at Keck School of Medicine of the University of Southern California.

Prenatal vitamin legislation

EWG is sponsoring five bills in the California Legislature this session, including SB 646, which would require prenatal vitamin manufacturers to test for and publicly disclose levels of potentially harmful heavy metals in their products. Authored by Senator Dr. Akilah Weber Pierson (D-San Diego), SB 646 passed the California Assembly Health Committee with bipartisan support this week.

Activist and social entrepreneur Hilary Swank testified in support of the bill in front of the California Senate Health Committee on April 2.

"As a mom and entrepreneur, I am deeply committed to protecting my family and your families," said Swank. "We know prenatal vitamins are essential for maternal and fetal health, but recent studies show that far too many contain heavy metals that can harm developing babies."

If signed into law, SB 646 would make California the first state to mandate transparency for prenatal supplements, setting a national precedent for stronger maternal health protections.

"Expecting mothers deserve transparency about the ingredients in the supplements they take to support their health and their baby's growth," said Susan Little, EWG's legislative director for California. "It's alarming to find heavy metals in prenatal vitamins. This bill is a critical step toward giving consumers the facts and pushing companies to make safer products."

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The Environmental Working Group (EWG) is a nonprofit, non-partisan organization that empowers people to live healthier lives in a healthier environment. Through research, advocacy and unique education tools, EWG drives consumer choice and civic action.

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